

Clause 7 (Maintenance and Repair of the Vehicle)

- 1 - If the renter becomes aware of the existence of some mechanical problem in the vehicle, the renter undertakes to immobilize the vehicle immediately and to contact the lessor during office hours. The lessor will tell the renter how to obtain travel assistance outside office hours.
- 2 - If the vehicle is immobilized due to a mechanical breakdown and there is no possibility of an on-site repair, the renter will be transported, if during office hours, to the premises of the lessor and, if outside office hours, to the address specified in the rental agreement.
- 3 - The renter will be liable to pay any expense of towing the vehicle, whether inside or outside Portugal, (to where it will be repaired), if the mechanical breakdown was due to any misuse of the vehicle by the renter.
- 4 - The vehicle must be returned in a clean state, both inside (no rubbish or other waste) and outside, as was in when it was delivered, otherwise the lessor will charge the renter a cleaning fee, according to the table for the time being in force, according to the lessor's price list.
- 5 - When the vehicle is returned with a lower amount of fuel than it had when it was delivered to the renter, the renter will be charged the cost of amount of the difference of the missing fuel plus refueling fees, according to the lessor's price list, which will be proved to the renter.

Clause 8 (Insurance)

1 - The rental vehicle has compulsory civil liability insurance in accordance with the terms of the legislation in force and insurance cover for damage to the vehicle itself up to a maximum of Euros: 50 000 000.00, which is valid in Portugal. As the renter is responsible for any damage caused to the rental vehicle, the renter will have to choose one of the following:

Option A – CDW – This covers all the damage to the vehicle in the case of an accident. The renter will be required to pay a variable premium depending on the type of vehicle and the fixed table in the premises of the lessor;

Option B – Super CDW – It covers all damage caused to the vehicle and total or partial theft of the same, with the renter being subject to payment of a reduced excess, according to the price list displayed on the lessor's station and website.

Option C – Super CDW PREMIUM – It covers all damage to the vehicle and the total or partial theft of the vehicle, according to the price list displayed on the lessor's station and website, with the renter not being liable to pay for any exemptions or being subject to any payment for reduced premiums.

2 - The renter will be solely responsible for all the repair costs and damage to keys, tyres, parts, and the bottom and top of the vehicle body (above the windshield), as these matters are not covered by insurance, where there is no collision with a third party.

3 - Only the renter and/or the drivers specified in this rental agreement may take advantage of the option of the insurance coverage above described.

4 - The renter will be solely responsible for all damage caused to the vehicle due to driving on roads which do not have a tarred surface, as this is not covered by insurance.

5 - In the case of theft of the vehicle, the renter must report the theft to the competent authorities immediately and send a copy of the complaint to the lessor, along with the vehicle keys. If the renter does not do so, all rental agreements and all the insurance cover ceases to be valid and all the costs will fall upon the renter.

6 - In case of any accident due to speeding, negligence, driving under the influence of alcohol, narcotics or the consumption of any product that reduces driving ability, the renter will be responsible for all the costs of repair and compensation for the period when the damaged vehicle is off the road, regardless of the insurance option chosen.

7 - The renter may also, upon payment of an increase in the daily rate, take advantage of a Personal Accident Insurance (PAI) of the driver and passengers whose maximum amounts are EUR 1 000,00 in case of illness or hospitalization and Euro: 10 000,00 in case of death or disability.

Clause 9 (Accidents)

1 - In the case of any accident, the renter is obliged to follow the following procedures:

- a) To notify immediately the lessor and the police authorities of any accident, theft, vandalism or any other claims;
- b) To obtain all the names and addresses of all those involved, including their telephone numbers, numbers of their driving licences and the place and date where they were issued and even to obtain the registration number and models of vehicles involved as well as their insurers and their insurance policy numbers;
- c) Not to admit any responsibility or blame in case of accidents, which may involve the responsibility of the lessor.

2 - Administrative and damage fees will be applied according to the price list displayed on the lessor's station and website.

Clause 10 (Payments)

The renter undertakes, expressly, to pay the due amounts to the lessor resulting from the conclusion of this rental agreement, as soon as they are requested, particularly:

- a) The price payable for the rent of the vehicle, depending on the duration of the rental period, including any extension period;
- b) All taxes and charges on the rental of the vehicle or the amount fixed by the lessor in order to refund such taxes and charges;
- c) All the costs charges due to paid by the renter to the lessor under the terms and conditions of this rental agreement, as and when they arise, as such costs and charges will be established and proved by the lessor.

Clause 11 (Electronic Toll Device)

According to the legal requirement, regulated in paragraph 3rd of Article 27th of Decree-Law No. 84-C/2022, the acceptance of the electronic toll device is automatically applied to the rental agreement, with its subscription being mandatory. The toll charges will be automatically charged to the linked credit card, with the customer's explicit consent.

Clause 12 (Infractions)

1 - The renter is responsible for paying any fines, penalties, toll fees and fuel during the rental period.

2 - The renter agrees to reimburse the lessor for the amount of any fines which the lessor has paid as a result of criminal conduct carried out by the renter and of any expenses incurred by the lessor due to such circumstances, provided that they are duly proved.

3 - If the lessor is notified by any public or private body to identify the renter, the renter agrees to pay all administrative expenses incurred by the lessor (in doing so), provided they are duly proved.

Clause 13 (Indemnities)

The lessor is not liable for any damage suffered by the renter or by a third party related to the use of the vehicle, or for any loss or damage to the goods renter, which have been left in the vehicle, or for any loss or anything which happens or any interruption of holidays or trips incurred by the renter as a result of any delay in the delivery (of the vehicle) or for any failure or accidents which do not fall within the express responsibility of the lessor.

Clause 14 (Information and Clarifications)

The renter acknowledges that all the clauses of this rental agreement were available at the time the agreement was concluded and were expressly communicated and explained to the renter and that the renter was fully aware of them.

All necessary telephone contacts during the rental period have been provided to you, customer support line, email, roadside assistance, addresses and website.

Clause 15 (Arbitration Center)

1st - Any disagreements that may arise in relation to the validity and interpretation, execution and non-compliance of this contract may be resolved through arbitration, in accordance with the respective law in force.

2nd - The competent forum to resolve any dispute arising from this contract is established in civil law, in the rules established in article 71 of the Civil Procedure Code.

3rd - The existing Alternative Dispute Resolution mechanisms are available at auto-prudente.com or CIMAAL – Algarve Consumer Conflict Information, Mediation and Arbitration Centre – Edifício Ninho de empresas, Estrada da Penha 8005-131 Faro Tel. 289 823 135 - apoio@consumidoronline.pt - www.consumidoronline.pt

